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Case Number: 25STCV37848 Hearing Date: September 18, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

LA

THEIA BLACK

Plaintiff,

vs.

CITY

OF RANCHO CUCAMONGA, et al.

Defendants.

Case No.:

25STCV37848

Hearing

Date:

September 18, 2026

[TENTATIVE]

ORDER SUSTAINING DEFENDANTS' DEMURRER

I. BACKGROUND

Defendant City of Rancho Cucamonga ("City") allegedly improperly transferred Plaintiff La Theia Black's ("Black") business to Defendant Anacani Debaca ("Debaca"), without ever obtaining Black's signature. Defendants Rancho Plaza Holding, LLC ("RPH") and RPH's owner Gavriel Sfaee ("Sfaee"), allegedly allowed Debaca to operate in Black's former commercial space under Black's permits, approvals, and goodwill. Black sued Defendants for conversion, appropriation of name or likeness, negligence, intentional infliction of emotional distress, defamation, violation of federal civil rights, and liability for policy or custom.

On September 18, 2026, RPH and Sfaee ("Moving Defendants") filed a demurrer as to Black's second amended complaint ("SAC"), in its entirety. Black filed an opposition. Moving Defendants filed a reply.

II. LEGAL STANDARD

Code

of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As

a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004))

116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment.

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Under Government Code section 911.2, subdivision (a), any claim relating to a cause of action for personal injury shall be presented no later than six months after accrual of the action. A claim relating to any other cause of action shall be presented no later than one year after accrual of the cause of action. (Ibid.) A claim must be submitted via personal delivery, mail or electronic submission to a proper authority. (Gov. Code § 915, subd. (a).)

“Except as provided in [Government Code] Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division.” (Gov. Code § 945.4.) Failure to present a claim for money or damages to a public entity bars a party from filing suit against that entity. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239.)

III. DISCUSSION

A. Allegations of the Complaint

Black alleges that, since January 17, 2016, Black has solely owned and operated her business, the Original Muffin Message (“OMM”), with all necessary permits and licenses. (SAC ¶ 10.) Starting March 18, 2020, Black leased a commercial space for OMM at 9612 Foothill Boulevard, Suite 125, in Rancho Cucamonga (“subject location”). (SAC ¶ 11.) Although Black allegedly never sold, assigned, or transferred ownership in OMM, she later learned Defendant County of San Bernadino’s (“County”) records showed OMM had been transferred to Debaca ss of December 2022. (SAC ¶¶ 12, 14.) Black was allegedly never notified of any transfer prior to February 1, 2024, when she applied for a home baking permit. (SAC ¶¶ 13, 15.)

Black alleges Debaca told a County employee Debaca received OMM via transfer of ownership in 2022. (SAC ¶ 16.) A County employee stated the County processed the transfer without written authorization from Black, as it was not required by the County. (SAC ¶¶ 17, 19.)

Black specifically alleges that Sfaee and RPH knowingly allowed Debaca to operate in Black’s former business location under Black’s business permits, without verifying lawful ownership, resulting, in part, in Black’s personal information being submitted to the IRS as part of a potentially fraudulent tax return. (SAC ¶¶ 20-21.) Sfaee and RPH also allegedly knowingly and intentionally took possession of Black’s property, prevented Black from having access to her personal property, and/or destroyed Black’s property. (SAC ¶ 26.)

Black alleges Sfaee and RPH are liable for conversion, appropriation of name or likeness, negligence, intentional infliction of emotional distress, and defamation.

B. Scope of Leave to Amend

The Court first notes that multiple causes of action alleged in Black’s SAC are outside the scope of leave to amend granted by the Court when ruling on the previous demurrer. “Generally, where a court grants leave to amend after sustaining a demurrer, the scope of permissible amendment is limited to the cause(s) of action to which the

demurrer has been sustained” (Edmon & Karnow, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2016) ¶ 6:635.5; see Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) The general rule does not apply if the new cause of action directly responds to the court’s reason for sustaining the earlier demurrer. (See Patrick v. Alacer Corp. (2008) 167 Cal.App.4th 995, 1015.)

When ruling on the previous demurrer, the Court sustained the City’s demurrer, in full, based upon failure to allege timely presentation of a claim to the City, as required by the Tort Claims Act. (See ‘6/9/26 Minute Order’.) The scope of leave to amend, therefore, only allowed Black to amend the complaint to address the issue of timely presentation of a claim to government entities and issues/causes of action already alleged in the FAC.

The FAC makes no mention of appropriation of likeness, identity, or name; therefore, the SAC’s second cause of action “Appropriate of Name or Likeness” is stricken, without leave to amend, as Black did not have a right to add this cause of action.

The fifth cause of action for “Defamation” is similarly stricken, without leave to amend. While the FAC does contain allegations of Debaca making “false representations,” regarding transfer of Black’s business ownership, it makes no reference to inspection reports posted by Debaca, RPH, or Sfaee containing “express statements to the public that Debaca’s business was the same as Plaintiffs, which is false,” which are the sole basis for defamation in the SAC. (FAC ¶ 49, SAC ¶ 47.) The cause of action for defamation improperly alleges new facts that are outside the scope of leave and therefore is stricken.

C. Conversion

Moving Defendants first request the Court sustain the demurrer as to the cause of action for conversion as it is uncertain and improperly pled, as it neither identifies the property alleged converted nor any wrongful act by Moving Defendants. “The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.) It does not require bad faith, knowledge, or even negligence; it requires only that the

defendant have intentionally done the act depriving the plaintiff of his or her rightful possession.” (Voris v. Lampert (2019) 7 Cal.5th 1141, 1158.)

The Court agrees with Moving Defendants. It appears the ‘personal property’ in question, in regard to the conversion claim, is Black’s “goodwill, intellectual property, and business identity,” although Black also refers to permits issued by the County, making it unclear what property is specifically at issue. (SAC ¶¶ 25-26.) There are also no factual allegations of Moving Defendants engaging in a wrongful act or disposition with intent to deprive Black of her personal property. The cause of action for conversion only discusses Debaca’s application for transfer of ownership, unrelated to Moving Defendants. (SAC ¶ 27.) The general allegations assert Moving Defendants allowed Debaca to operate on the subject property under Black’s permits and goodwill without verifying lawful ownership, which is not indicative of any intent to deprive Black of her personal property; at most, it is indicative of negligence. (SAC ¶ 21.)

The SAC is insufficiently pled as it is both ambiguous and does not clearly assert any intent by Moving Defendants to deprive Black of property. Therefore, the Court sustains the demurrer as to this cause of action.

D. Negligence

Moving Defendants request the Court sustain the demurrer as to the cause of action for negligence as Black does not allege facts supporting a duty, breach, or proximate causation attributable to Moving Defendants. “The elements of a cause of action for negligence are well established. They are ‘(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.’” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

The Court agrees there is no clear duty attributable to Moving Defendants within the SAC; the SAC only states “Defendants and each of them owed a duty of due care to Plaintiff,” but does not explain what duty Moving Defendants, as landlords, had to Black, as a tenant, that were violated under these allegations. (SAC ¶ 38.) A landlord does not have a duty to ensure the validity of governmental permitting decisions outside the landlord’s control. (Day v. Lupo Vine Street, L.P. (2018) 22 Cal.App.5th 62, 73-74.) A landlord also is not liable for the negligent acts of tenants,

meaning Debaca's alleged negligence is not attributable to Moving Defendants. (St. John v. Schaeffler (2025) 109 Cal.App.5th 1146.)

In opposition, Black asserts Moving Defendants do have a basic duty of care to not engage in conversion, defamation, and appropriation. However, as discussed previously, claims for defamation and appropriation are stricken as outside the scope of leave to amend, and conversion is subject to demurrer due to insufficient pleadings. Even assuming the Court considered these allegations, simply 'allowing' harm to occur is not enough to satisfy proximate cause pleading requirements. Therefore, the Court sustains the demurrer as to this cause of action.

E. Intentional

Infliction of Emotional Distress ("IIED")

Moving Defendants finally request the Court sustain the demurrer as to the IIED claim as the facts do not allege 1) extreme and outrageous conduct; 2) intent to cause distress or reckless disregard; 3) extreme emotional distress. A

cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [citations and quotations omitted].) A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) The defendant must either intend his or her conduct to inflict injury or have engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.)

The Court agrees. There is no alleged extreme or outrageous conduct attributable to Moving Defendants. At most, Moving Defendants failed to ensure Debaca's business permits were proper. This does not constitute outrageous conduct outside all possible bounds of decency. Additionally, outside of one conclusory statement, Black has no allegations addressing Moving Defendants' intent to cause Black emotional distress. (SAC ¶ 43.) Black also fails to allege any facts regarding severe

emotional distress, merely asserting she "suffered severe emotional distress from the threat of identity theft and the' real impact of audits and investigations." (FAC ¶ 44.)

As Black failed to plead facts to support any element of an IIED cause of action, the Court sustains the demurrer as to this cause of action.

E. Leave
to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Black requests leave to amend, arguing she can add in additional detail to cure the lack of specificity. As at least, in part, the demurrer was sustained due to insufficient facts, the Court grants leave to amend in the interest of resolving this issue on the merits and allowing Black another opportunity to present an actionable complaint.

IV. CONCLUSION

Defendant
Rancho Plaza Holding, LLC and Gavriel Sfaee's demurrer to Black's Second Amended Complaint is SUSTAINED, with 30 days leave to amend, as to the first, third, and fourth causes of action.

The
causes of action for defamation and appropriation of name or likeness are stricken, without leave to amend.

Moving Defendants are to give notice.

DATED:
September 18, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.